

HOUSE No. 4562

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 2, 2025.

The committee on Education, to whom was referred the petition (accompanied by bill, House, No. 539) of Michael S. Day and Natalie M. Blais relative to nutrition in public schools, reports recommending that the accompanying bill (House, No. 4562) ought to pass.

For the committee,

KENNETH I. GORDON.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to healthy school lunches.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after section 15ZZZZZZ, the following section:-

3 Section 15AAAAAAA.The governor shall annually issue a proclamation setting apart
4 March 21 as Massachusetts Child Nutrition Day and recommending that the day be observed in
5 an appropriate manner by the people.

6 SECTION 2. Chapter 71 of the General Laws is hereby amended by inserting, after
7 section 99, the following new section:-

8 Section 100. (a) The purpose of this section is to ensure that the students of the
9 Commonwealth are appropriately nourished in order to support a healthier, livable and more
10 equitable future for all.

11 (b) For the purposes of this section, the following words shall have the following
12 meanings:-

(i) food service management company is defined as a commercial enterprise or a nonprofit organization which is or may be contracted with by the school food authority to manage any aspect of the school food service

(ii) entrée is defined as the meat/meat alternate category within the USDA's Federal Nutrition Standards

(iii) "Fiber-rich" is defined as an entrée item that contains at least 14 g of fiber per 1000 kcal from whole food sources such as whole grains, legumes, beans, pulses, fruits, and vegetables

(iv) "Reimbursable meal" is any meal that meets the United States Department of Agriculture (USDA) National School Lunch Program nutritional requirements for federal reimbursement at

the annual allotted rate of any of the following: (a) free lunch; (b) reduced-price lunch; or (c) paid lunch

(v) "ultra-processed food" is defined as industrial formulations of food substances never or rarely used in kitchens (such as high-fructose corn syrup, hydrogenated or interesterified oils, and hydrolysed proteins), or classes of additives designed to make the final product palatable, appealing, or preservable (such as flavours, flavour enhancers, colours, emulsifiers, emulsifying salts, sweeteners, thickeners, nitrates, nitrites, preservatives, and anti-foaming, bulking, carbonating, foaming, gelling and glazing agents)

(c) Any food service management company selling food to Massachusetts public schools for our children to consume shall ensure that at least 50% of the entrées sold and served for lunch

within school hours in schools, school districts, or other entities over the course of each week are healthy foods containing whole grains, vegetables, fruits, legumes and other fiber-rich proteins as part of a reimbursable meal offering within the federal National School Lunch Program.

(d) No food service provider may sell or serve in Massachusetts public schools, school districts, or other entities more than 20% of entrée items that meet one or more of the following: qualify as ultra-processed; have a nutritional composition that includes more than 30 milligrams of cholesterol more than 5% of the entrées' total calories come from saturated fat as part of a weekly reimbursable meal offering within the federal National School Lunch

(e) Each food service provider selling food to Massachusetts public schools for school children to consume, shall keep itemized nutrition data that is made publicly available on a monthly basis to demonstrate compliance with this statute.

(f) Each food service management company will have a phase in period of three years following the initial date of their most recent contract with their respective school food authority or by the first day of the school calendar year 2033-2034, whichever comes first.

SECTION 3. The board of elementary and secondary education shall establish a school meal nutrition standards advisory council to advise the commissioner of elementary and secondary education on implementation of the recommendations of the school meal nutrition standards commission established in section 77 of chapter 28 of the acts of 2023. The council shall 1) provide ongoing guidance in the development of comprehensive strengthened nutrition standards aligned with the most current public health guidance and evidence-based nutrition standards, 2) provide ongoing feasibility assessments, 3) work with school food authorities and stakeholders to reduce barriers to feasibility of implementation on issues including but not

56 limited to procurement, facilities and workforce training. The members of the council shall serve
57 without compensation but may be reimbursed, subject to appropriation, for expenses necessarily
58 and reasonably incurred in the performance of the member's responsibilities. The council shall
59 consist of 11 members including 6 members to be appointed by the governor, who shall be
60 school nutrition operators or registered dietitians representing geographically, racially and
61 socioeconomically diverse school districts across the commonwealth; a representative from
62 Project Bread – The Walk for Hunger, Inc.; a representative from the School Nutrition
63 Association of Massachusetts, Inc.; and a representative from the Massachusetts Healthy School
64 Lunch Coalition. Members shall be appointed for a term of 3 years. Members serving on the
65 council shall represent a reasonable statewide geographic balance. The council shall meet not
66 less than four times each year. The council shall elect a chair to serve for a term of three years
67 who may appoint other officers as necessary.